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Attorneys for Defendant
FROSTBYTE REFRIGERATION, INC.

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF EXAMPLETON

PIE IN THE SKY BAKERY, LLC, a California limited liability company, Plaintiff, v. FROSTBYTE REFRIGERATION, INC., a California corporation, Defendant.	Case No. EX-2026-000123 **DEFENDANT FROSTBYTE REFRIGERATION, INC.'S RESPONSES AND OBJECTIONS TO PLAINTIFF'S FIRST SET OF INTERROGATORIES, REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION**

PROPOUNDING PARTY: Plaintiff Pie in the Sky Bakery, LLC
RESPONDING PARTY: Defendant Frostbyte Refrigeration, Inc.
SET NO.: One

Defendant Frostbyte Refrigeration, Inc. ("Frostbyte") responds and objects to Plaintiff's First Set of Interrogatories, Requests for Production, and Requests for Admission as follows.

GENERAL OBJECTIONS

1. Frostbyte objects to each Interrogatory, Request for Production and Request for Admission to the extent it seeks information protected by the attorney-client privilege, the work-product doctrine, or any other applicable privilege.

2. Frostbyte objects to the definitions of "YOU" and "YOUR" as overly broad to the extent they include Frostbyte's attorneys, contractors or other persons over whom Frostbyte has no control.

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3. Frostbyte objects to each request to the extent it is overly broad, unduly burdensome, or not proportional to the needs of the case.

4. Frostbyte's discovery and investigation are ongoing, and Frostbyte reserves the right to supplement or amend these responses.

5. Each of the foregoing General Objections is incorporated into each specific response below as though fully set forth therein.

RESPONSES TO INTERROGATORIES

INTERROGATORY NO. 1:

IDENTIFY each person who performed any work on the SYSTEM, including installation, commissioning, service or repair, and for each person state the dates and nature of the work performed.

RESPONSE TO INTERROGATORY NO. 1:

Frostbyte objects to this Interrogatory as overly broad and unduly burdensome. Subject to and without waiving these objections, Frostbyte states that its technicians installed, commissioned and serviced the SYSTEM in the ordinary course of business.

INTERROGATORY NO. 2:

Describe in detail each step YOU took to configure the TempMinder alert system at the KITCHEN, including the date each step was taken, who took it, and the phone numbers and email addresses entered as alert contacts.

RESPONSE TO INTERROGATORY NO. 2:

Frostbyte objects to this Interrogatory as vague and ambiguous as to the term "configure." Subject to and without waiving this objection, Frostbyte states that TempMinder was configured according to Frostbyte's standard procedures.

INTERROGATORY NO. 3:

State the refrigerant charge, in pounds and ounces, that YOU placed in the SYSTEM at installation and at the June 10, 2026 service visit.

RESPONSE TO INTERROGATORY NO. 3:

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Pursuant to Code of Civil Procedure section 2030.230, Frostbyte refers Plaintiff to the work orders and service records it will produce in this action.

INTERROGATORY NO. 4:

State all facts supporting YOUR contention that the INCIDENT was caused by a power fluctuation.

RESPONSE TO INTERROGATORY NO. 4:

Frostbyte objects to this Interrogatory as premature because discovery has just begun and expert discovery has not commenced. Frostbyte will rely on expert testimony and on documents produced in this action.

INTERROGATORY NO. 5:

IDENTIFY every other customer to whom YOU sold a EX-40 condensing unit between January 1, 2024 and the present that reported a compressor failure within the first year of operation.

RESPONSE TO INTERROGATORY NO. 5:

Frostbyte objects to this Interrogatory as overly broad, unduly burdensome, not relevant to any party's claim or defense, and not proportional to the needs of the case, and on the ground that it seeks confidential commercial information about non-parties. Frostbyte will not respond to this Interrogatory.

INTERROGATORY NO. 6:

Describe every communication YOU had with Pie in the Sky between May 1, 2026 and August 2, 2026 concerning the performance of the SYSTEM.

RESPONSE TO INTERROGATORY NO. 6:

Frostbyte states that it communicated with Pie in the Sky on the following occasions: (a) June 9, 2026, telephone call from Pie in the Sky kitchen manager Jamie Doe to Frostbyte dispatcher Riley Roe reporting loud cycling and a temperature of 14°F; (b) June 10, 2026, in-person visit by technician Kelly Testman; (c) July 5, 2026, telephone call from Mx. Doe to Mx. Roe reporting the INCIDENT; (d) July 7, 2026, Pie in the Sky's written notice letter; and (e) July 29, 2026, email from Frostbyte service manager Morgan Placeholder to Mx. Doe scheduling the August 2, 2026 compressor replacement.

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INTERROGATORY NO. 7:

State the reason YOU replaced the compressor on August 2, 2026, and IDENTIFY the person who made that decision.

RESPONSE TO INTERROGATORY NO. 7:

The compressor was replaced on August 2, 2026 as a goodwill accommodation. Frostbyte denies that the compressor was defective.

INTERROGATORY NO. 8:

IDENTIFY all DOCUMENTS that record data logged by the TempMinder system at the KITCHEN between May 1, 2026 and July 5, 2026.

RESPONSE TO INTERROGATORY NO. 8:

Frostbyte objects to this Interrogatory as overly broad and unduly burdensome. Frostbyte will produce responsive, non-privileged documents at a mutually agreeable time.

INTERROGATORY NO. 9:

State whether YOU contend that any act or omission of Pie in the Sky caused or contributed to the INCIDENT and, if so, state all facts supporting that contention.

RESPONSE TO INTERROGATORY NO. 9:

Yes. Frostbyte contends that Pie in the Sky failed to maintain the SYSTEM properly and failed to monitor it.

INTERROGATORY NO. 10:

IDENTIFY each insurance policy that may provide coverage for the claims in this action, including the insurer, policy number and limits.

RESPONSE TO INTERROGATORY NO. 10:

Frostbyte is insured under Commercial General Liability Policy No. CGL-00000000 issued by Example Mutual Insurance Company, with limits of $1,000,000 per occurrence and $2,000,000 aggregate, for the policy period January 1, 2026 to January 1, 2027.

RESPONSES TO REQUESTS FOR PRODUCTION

REQUEST FOR PRODUCTION NO. 1:

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All DOCUMENTS relating to the installation and commissioning of the SYSTEM, including work orders, commissioning checklists, and photographs.

RESPONSE TO REQUEST FOR PRODUCTION NO. 1:

Frostbyte will produce all responsive, non-privileged documents in its possession, custody or control.

REQUEST FOR PRODUCTION NO. 2:

All service reports, technician notes and invoices relating to the June 10, 2026 service visit.

RESPONSE TO REQUEST FOR PRODUCTION NO. 2:

Frostbyte objects to this Request as overly broad and unduly burdensome. Subject to and without waiving these objections, Frostbyte will produce responsive documents.

REQUEST FOR PRODUCTION NO. 3:

All data, logs, and alert records generated by the TempMinder system at the KITCHEN from May 1, 2026 to the present.

RESPONSE TO REQUEST FOR PRODUCTION NO. 3:

Frostbyte objects to this Request as overly broad, unduly burdensome, and not proportional to the needs of the case, and to the extent it seeks data in the possession of a third party, TempMinder Example Co..

REQUEST FOR PRODUCTION NO. 4:

All COMMUNICATIONS between YOU and Pie in the Sky concerning the SYSTEM.

RESPONSE TO REQUEST FOR PRODUCTION NO. 4:

Frostbyte will produce responsive, non-privileged communications within 30 days of service of these responses.

REQUEST FOR PRODUCTION NO. 5:

All internal COMMUNICATIONS among YOUR employees concerning the INCIDENT.

RESPONSE TO REQUEST FOR PRODUCTION NO. 5:

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Frostbyte objects to this Request as overly broad and on the grounds that it seeks documents protected by the attorney-client privilege and work-product doctrine.

REQUEST FOR PRODUCTION NO. 6:

All DOCUMENTS supporting YOUR contention that the INCIDENT was caused by a power fluctuation.

RESPONSE TO REQUEST FOR PRODUCTION NO. 6:

See response to Interrogatory No. 4.

REQUEST FOR PRODUCTION NO. 7:

The removed compressor and any DOCUMENTS reflecting its inspection, testing or disposal after August 2, 2026.

RESPONSE TO REQUEST FOR PRODUCTION NO. 7:

Frostbyte objects to this Request as vague as to "the removed compressor." Frostbyte further states that it is not required to create documents that do not exist.

REQUEST FOR PRODUCTION NO. 8:

All warranty claims made to YOU, or by YOU to the manufacturer, concerning EX-40 condensing units since January 1, 2024.

RESPONSE TO REQUEST FOR PRODUCTION NO. 8:

Frostbyte objects to this Request as overly broad, unduly burdensome, not relevant, and not proportional to the needs of the case, and as seeking confidential business information.

RESPONSES TO REQUESTS FOR ADMISSION

REQUEST FOR ADMISSION NO. 1:

Admit that YOU did not enter any Pie in the Sky contact information into the TempMinder system before July 4, 2026.

RESPONSE TO REQUEST FOR ADMISSION NO. 1:

Frostbyte lacks sufficient information to admit or deny this Request and on that basis denies it.

REQUEST FOR ADMISSION NO. 2:

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Admit that the TempMinder system at the KITCHEN sent no alert to any Pie in the Sky contact on July 4 or 5, 2026.

RESPONSE TO REQUEST FOR ADMISSION NO. 2:

Denied.

REQUEST FOR ADMISSION NO. 3:

Admit that YOUR technician did not record a refrigerant charge on the commissioning checklist for the SYSTEM.

RESPONSE TO REQUEST FOR ADMISSION NO. 3:

Frostbyte objects to this Request as calling for a legal conclusion. Subject to and without waiving this objection, denied.

REQUEST FOR ADMISSION NO. 4:

Admit that the SYSTEM is covered by the warranty in Section 9.1 of the AGREEMENT.

RESPONSE TO REQUEST FOR ADMISSION NO. 4:

Admitted.

REQUEST FOR ADMISSION NO. 5:

Admit that YOU received Pie in the Sky's written notice of the INCIDENT dated July 7, 2026.

RESPONSE TO REQUEST FOR ADMISSION NO. 5:

Admitted.

REQUEST FOR ADMISSION NO. 6:

Admit that YOU have no DOCUMENTS showing a power fluctuation at the KITCHEN on July 4, 2026.

RESPONSE TO REQUEST FOR ADMISSION NO. 6:

Frostbyte objects to this Request as improperly seeking to shift the burden of proof. Frostbyte has made a reasonable inquiry, and the information it knows or can readily obtain is insufficient to enable it to admit or deny this Request.

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Dated: October 26, 2026

EXAMPLE DOE & ROE PC
By: /s/ Theodore R. Example
Theodore R. Example
Attorneys for Defendant
FROSTBYTE REFRIGERATION, INC.

PROOF OF SERVICE

I certify that on October 26, 2026, I served the foregoing document by email on counsel for Plaintiff, Penelope Q. Sample, at psample@example.com.

/s/ Theodore R. Example

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